

SEPARATE OPINION BY JONKHEER VAN EYSINGA.

[Translation.]

The Judgment does not entirely express my opinion ; in these circumstances, I would subjoin to it a statement of my separate opinion on certain parts of the case.

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In each of the two actions which have been brought before the Court in the present case—in the main Netherlands action and in the Belgian counter-claim—the applicant Party alleges that certain hydraulic works are inconsistent with the Treaty of May 12th, 1863, concerning the régime for the diversion of water from the Meuse. Neither the Netherlands in the principal action, nor Belgium in the counter-claim, alleges that the hydraulic works in question are contrary to general international law. Such an assertion had been made *inter alia* by Belgium in regard to the feeding of the Juliana Canal with Meuse water, as appears from the Belgian note transmitted to the Netherlands Government on April 28th, 1921 (Belgian Counter-Memorial, p. 27). That note declared that this “régime would be in conflict with the general principles of international law governing the utilization of international rivers by the riparian States”. But, in the present case, general international law, to which Belgium has alluded on several occasions, must be left on one side ; we are here only concerned with the Treaty of 1863.

What the two States are asking the Court to give them is an interpretation of that Treaty with special reference to certain hydraulic works, the compatibility of which with the Treaty is a subject of dispute. It is therefore one of those cases which, according to Article 13 of the Covenant of the League of Nations, is primarily suitable for judicial settlement. Each of the Parties is entitled to ask the Court for an interpretation of the Treaty, and the Court is not entitled to refuse to give this interpretation.

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It will be seen from the foregoing observations that the first thing to do is to ascertain the character, the scope and the interpretation of the Treaty of 1863.

The Treaty of 1863 put an end, by means of a compromise, to a dispute which had existed between the two countries for several years.

The Netherlands alleged that Belgium was wrongfully diverting (*aftappen*) Meuse water in order to feed her new system of canals in the Campine and her irrigation works in the Campine; this water, which was withdrawn from the Meuse, was to a considerable extent conveyed to the Scheldt. Liège, an ancient port on the Meuse, and the Belgian basin of the Meuse in general, had used the Meuse from the earliest times as a natural navigable waterway, terminating in Holland. However, after the dissolution of the Kingdom of 1815, which comprised Belgium, Luxemburg and the present territory of the Netherlands, Belgium endeavoured to direct the traffic of her Meuse basin towards Antwerp; she did this in particular with the help of her canals in the Campine which were designed to link the Zuid-Willemsvaart, and thereby the Meuse, to the great Belgian maritime port—as indeed is indicated by the name: Meuse-Scheldt Junction Canal. My reason for mentioning this fact is to show that the Netherlands Government did not, in the dispute which was regulated by the Treaty of 1863, any more than in the suit now under consideration, oppose the diversion of the traffic of the Belgian Meuse basin towards Antwerp. Neither in the dispute in the XIXth century, nor in that in the XXth century has there been any question of an objection to the diversion of traffic; in both cases the disputes were solely concerned with objections to the withdrawal (*aftapping*) of Meuse water effected by Belgium.

It is not superfluous to point out that when the Netherlands, in the dispute in the middle of the XIXth century, alleged that Belgium was arbitrarily withdrawing water from the Meuse, the objection in no way concerned the quantity of water necessary for navigation in the Zuid-Willemsvaart, or, later on, in the prolongation of that canal as far as Liège. There may be different opinions as to whether the Zuid-Willemsvaart is, or is not, a lateral canal of the Meuse—the Belgian Counsel, M. Delmer, says that it is (Oral Pleadings, p. 86); the Belgian Counsel, Me. Marcq, says that it is not (Oral Pleadings, p. 189); but one thing is certain, namely that when King William I, as early as 1819, ordered an investigation of the problem, the initial step which led to the construction of the Zuid-Willemsvaart, the object in view was to provide the important industrial and mining districts of the present Belgian Meuse basin with a better navigable waterway. The results of the investigations carried out by the *Waterstaat* showed that a canal could be made which would be much shorter than the Meuse and would offer a navigable waterway, practically always available, unlike the Meuse which suffered at times from an insufficiency and at times from a superabundance of water, either of which conditions were an obstacle to navigation during considerable parts of the year. The Zuid-Willemsvaart was

ready for use in 1826, and its prolongation as far as Liège was ready in 1850, or at the beginning of 1851. It was known beforehand that these canals would use a certain quantity of Meuse water, but that inevitable consequence of an improvement in the communications by water was all the more easy of acceptance because the quantity required was inconsiderable. It should be noted, in this connection, that Article V, paragraph 1, of the Treaty of 1863 allots a volume of two cubic metres, or even as little as 1.50 cubic metre, per second to the Zuid-Willemsvaart below Loozen and to the canals branching off from this part of the Zuid-Willemsvaart, and to the Netherlands irrigation channels. And, in the case of the Liège-Maastricht Canal, neither the Convention of 1845, which provided for its construction, nor the Treaty of 1863 said anything on the subject of its lock-water, which was very natural because the volume of such water is extremely small, viz., one-tenth of a cubic metre per second, a quantity less than the margin of error which occurs in measuring the discharge through the feeder at Maastricht, as is pointed out on page 15 of the Belgian Rejoinder.

In point of fact, the Netherlands never made any complaint in regard to the small quantities of water requisite to enable the Zuid-Willemsvaart and the canal prolonging it to Liège to be utilized as a waterway.

But the situation was very different when Belgium began to use the two navigable canals to convey the large quantities of water which she found that she required for her system of canals in the Campine, then in course of construction, and for her projected irrigation works in the Campine. Belgium began to take the supplementary water required for her canals and irrigation works in the Campine at three different intakes. All of them were situated in Belgian territory.

First, there was the intake at Hocht, quite close to the spot where the Zuid-Willemsvaart leaves Netherlands territory. A feeder drawing its water from the Meuse, which at that point runs close alongside the canal, was constructed in 1837 on the right bank of the canal.

Secondly, as soon as the Liège-Maastricht Canal was completed, Belgium began to use it also as a feeder for the system of canals and irrigation channels in the Campine. For this purpose, large quantities of Meuse water were diverted at Liège into the lateral canal at Maastricht; this process was facilitated, subsequently, by the construction of a barrage which raised the level of the Meuse at the place where the lateral canal branched off. In order not to hamper navigation unduly in the lateral canal, the large quantities of water were introduced into the canal during the night, with the result that

on the following day, at a particular time, the level of the Meuse in Netherlands Limburg fell considerably, so that it was described there as being subject to a flux and reflux, like that of the sea, only more regular.

In order that the Zuid-Willemsvaart should afford a rapid passage to the large quantities of Meuse water diverted at Liège, it was necessary to increase the velocity of its current. This was done at the very time when the Liège-Maastricht Canal was taken into use, namely, about the beginning of 1851. For this purpose, a third intake, or rather a cascade, was constructed in Belgian territory to the left of the old lock 19, near Hocht, where "the lateral derivation" was deepened and enlarged.

The statement of reasons which was drawn up by M. Rogier, the Belgian Prime Minister, and is dated on the day after the signature of the Treaty (Netherlands Memorial, p. 21), makes repeated mention of the intakes at Liège and at Hocht; and in his statement on May 10th, the Belgian Counsel, M. Delmer, clearly described the situation of which the Netherlands Government had complained prior to 1863.

In fact, Belgium, in order to feed her new system of Campine canals and her Campine irrigation works, took water wherever she could find it, and the three intakes on the Meuse were supplemented by water drawn off from several of the streams and water-courses which flowed towards Netherlands North Brabant; at the same time, the water which had been used for irrigation was discharged, in part, into Netherlands territory, where it caused inundations, which were very mischievous, especially in the hay-making season.

The withdrawal of water for the needs of the Campine caused the Netherlands to make repeated representations to the Cabinet at Brussels. Two international commissions studied the problem in 1856 and in 1858, but without success. In 1860, the Second Chamber of the States-General appointed a commission of enquiry, and in the following year a convention was signed at Brussels which maintained the situation as it was in the neighbourhood of Hocht; this convention was rejected by the Second Chamber of the States-General. Further negotiations followed, in conjunction with the discussions concerning the redemption of the Scheldt tolls and commercial arrangements; until finally the Treaty of May 12th, 1863, reconciled the divergent standpoints and put an end to the dispute.

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What are the provisions of the Treaty of 1863?

The essential feature of the Treaty was that a considerable portion of the discharge of the international river was assigned

to Belgium, even at periods of the year when the Meuse is very low. The Treaty, therefore, derogated from the normal state of affairs, according to which the discharge of an international river belongs to that river. The quantity of water to be withdrawn for Belgium, as laid down in Articles IV and V of the Treaty, is fixed, and is therefore both a maximum and a minimum quantity. The Netherlands have also to receive a certain quantity of water, which, however, is far less than that allotted to Belgium; on the other hand, it is liable to be increased, within certain limits and subject to certain conditions (Art. V, para. 2, and Art. XI).

The considerable withdrawals of Meuse water for the canals and irrigation works of the Campine were rendered feasible by means of a variety of measures designed to neutralize the undesirable consequences of these diversions of water. The water was henceforward to be withdrawn solely at Maestricht (Art. I); the Zuid-Willemsvaart was to undergo certain alterations (Arts. II and III); measures were to be taken to prevent inundations in the Netherlands as a result of irrigation in Belgium (Art. VI); certain works were to be carried out on the Meuse between Maestricht and Venlo (Art. IX). It should be added that Article VII prohibits the withdrawal of water, in the future, from certain water-courses flowing towards the Netherlands.

It was the withdrawal of large quantities of water from the Meuse, on the one hand, and the measures to offset the undesirable consequences of that withdrawal, on the other hand, that constituted the compromise established by the Treaty, which, as its Preamble states, regulated, permanently and definitively, the régime of diversions of water from the Meuse. The withdrawal of water from the Meuse comes first, and the other provisions of the Treaty, though also important, are the effect of that withdrawal.

For the supply of water to all the canals situated below Maestricht, and to the irrigation channels in the Campine and the Netherlands, Article I of the Treaty of 1863 substitutes a single intake, which is to be established in Netherlands territory in place of the existing intakes, which were all in Belgian territory.

Belgium has maintained that the monopoly accorded to the intake at Maestricht only applied in the sector of that river below Maestricht, as far down as Venlo. This contention, which implies that, above Maestricht, it would be lawful to divert water from the Meuse in order to feed canals situated below Maestricht, does not appear to me to be justified.

It should be pointed out, in this connection, that Article I, which speaks of the establishment of the feeder for all the canals situated below Maestricht and for the irrigation works in the

Campine and the Netherlands, is drawn up in entirely general terms, so far as concerns the places at which the obligation to refrain from installing a new intake on the Meuse applies. This obligation applies at every place where it would be possible to construct an intake for feeding any canal whatsoever situated below Maestricht, or for feeding irrigation works in the Campine and the Netherlands. As is known, the principal intake existing prior to 1863 was situated above Maestricht. This was the important intake which Belgium operated at Liège, and which is repeatedly mentioned in the statement of reasons by the Prime Minister, M. Rogier.

The Belgian argument endeavours to interpret Article I of the Treaty by means of Article IX. In this way it brings the Maestricht-Venlo sector, which is mentioned in the latter Article, within the compass of Article I. But in so doing, it restricts, unjustifiably, the very general scope of Article I, and it forgets that the only link between the two Articles is that between cause (Art. I) and effect (Art. IX). I am well aware that the Belgian argument avers that the principal aim of the Treaty was the improvement of the Meuse, which would appear to justify the interpretation of Article I from the standpoint of Article IX. But it is clear from the Preamble of the Treaty, *inter alia*, that the aim of the Treaty is to regulate "the system of diversions of water from the Meuse"; and the essential feature of the Treaty, as has already been pointed out, consists of the ten cubic metres per second that are to be taken from the Meuse, out of which amount eight cubic metres per second are assigned to Belgium¹. The deterioration of the Meuse which results from this diversion of Meuse water constitutes, as is said in M. Rogier's statement of reasons, a disturbance of the equilibrium which must, in fairness, be re-established by the carrying out of certain works on the Meuse. Article IX is indeed an effect of Article I, and seeks to neutralize its consequences. Article IX should properly be interpreted in the light of Article I, whereas an interpretation in the inverse order runs directly counter to the very general import of Article I.

To the foregoing I would add a practical observation.

It has been suggested that Article I of the Treaty of 1863 only prohibits the establishment of intakes on the Meuse below Maestricht, as far down as Venlo. But is it realized that, if that were so, the practical men, the engineers, who according to the Belgian statements were responsible for framing the treaty, would have strayed very far from the sphere of realities? I will explain.

¹ Except in regard to the barrage of Borgharen, the present Opinion disregards, in general, the case in which the river is at or below the low level.

It has been pointed out that even the Hocht intake—which was however situated very close to the spot where the Zuid-Willemsvaart leaves Netherlands territory—did not always give satisfaction, for the reason that, even at Hocht, the surface of the Meuse sometimes fell to the level of the Zuid-Willemsvaart and even lower, so that the feeding of the Zuid-Willemsvaart from the Meuse became impracticable. Now, if it is realized, in the first place, that the level of the Zuid-Willemsvaart was raised in pursuance of Article III of the Treaty, and that the reach thus raised extends as far as lock 18—in other words, almost as far as the frontier of Netherlands North Brabant—and that, in the second place, the Meuse between Hocht and Kessenich or Maasbracht—places which are almost in line with lock 18—has a fall of more than twenty metres, whereas the Zuid-Willemsvaart does not begin to fall rapidly before lock No. 12, which is in line with Venlo, it is manifest that the Meuse below Maestricht is descending a valley, whereas the Zuid-Willemsvaart, as far as lock 18, continues its course entirely on the western plateau, and only falls gradually till it reaches lock 12 in line with Venlo.

That, it appears, suffices to show that the idea of supplying the Zuid-Willemsvaart below Maestricht with Meuse water would not be very practical, except in the immediate vicinity of the feeder.

Belgium was henceforward to receive a very satisfactory allowance of Meuse water for her requirements in the Campine, through the new and only lawful intake at Maestricht—as was pointed out by M. Rogier in his statement of reasons. It has already been mentioned that the volume of water which the new feeder at Maestricht was to supply was normally ten cubic metres per second, of which eight cubic metres were the *fixed* quantity guaranteed to Belgium (Art. V).

The specification of the precise amount of water to be taken from the Meuse—a provision which was in itself unusual—points to the conclusion that, when it was laid down that the intake at Maestricht was to be henceforward the only feeder for the supply of Meuse water to canals situated below that town, the granting of this monopoly to the new intake carried with it a prohibition of all feeding at other places, whether by conduits, by discharging culverts, by lock-water or by any other means by which Meuse water might be introduced into canals situated below Maestricht.

This conclusion has been disputed in regard to a single method of introducing Meuse water into canals situated below Maestricht, namely the discharge of water by lockage. I consider that this exception should not be allowed.

A justification of the exception has been sought in the fact, already mentioned, that the Treaty of 1863 makes no mention of the quantities of water entering the Zuid-Willemsvaart by the functioning of lock 19, which discharges into the Zuid-Willemsvaart a certain quantity of Meuse water that has been conveyed from Liège by the Liège-Maastricht Canal; it has been inferred from this fact that any quantity of water supplied to canals situated below Maastricht by lockage, for instance by the functioning of the Neerhaeren or Bosscheveld Locks, would consequently be consistent with the Treaty of 1863.

I do not believe that this interpretation of the Treaty is correct. For the silence of the Treaty concerning the introduction of the very small quantity of Meuse water which finds its way into the canals below Maastricht by the functioning of lock 19 can be easily explained. As has been pointed out, the feeding of the Zuid-Willemsvaart itself with Meuse water had not occasioned any difficulty. Why should it have been otherwise when the canal was prolonged to Liège? The silence of the texts concerning the small quantities of Meuse water required for navigation in the canal which linked Liège to the Meuse below Bois-le-Duc is therefore quite comprehensible, both in the case of the Treaty of 1845, concerning the prolongation of the Zuid-Willemsvaart to Liège, and in the case of the Treaty of 1863, which has restored the Liège-Maastricht Canal to its exclusive rôle as a navigable waterway.

On the other hand, the immense quantities of Meuse water which now enter the canals below Maastricht through the modern locks at Neerhaeren and Bosscheveld, though the discharge of the river has not altered, disturb the system of the Treaty of 1863. That Treaty aimed at providing Belgium with eight cubic metres of Meuse water per second, neither more nor less. But by the functioning of the locks at Neerhaeren and Bosscheveld, Belgium receives a far larger quantity. Moreover, every cubic metre per second passing through the lock at Neerhaeren diminishes the quantity of supplementary water which the Netherlands have a right to introduce through the feeder at Maastricht, in virtue of Article V, paragraph 2, of the Treaty; that right is limited by the maximum velocity of the current specified in that Article, a velocity which is enhanced by the lock-water discharged at Neerhaeren. Nay, more: the Treaty of 1863 seeks to ensure that the Meuse water used for supplying canals situated below Maastricht shall be taken solely through the feeder at Maastricht, which is operated by the Netherlands *Waterstaat*. It is easy to verify the quantities of water diverted at a single intake, whereas it is difficult to make such measurements when the water is drawn off at different places, as used to happen before 1863. The introduction of great quantities of water into the canals below

Maestricht by the functioning of large modern locks consequently destroys the system of the Treaty of 1863 in another sense also, for it puts an end to the monopoly of the intake at Maestricht, and makes it very difficult to check the amount of water diverted from the river by the Neerhaeren Lock, which is not under the same administration as the intake at Maestricht. It should be added that engineers agree in recognizing that the principal method of supplying water to canals is, precisely, by the functioning of the locks.

The expression "canals situated below Maestricht" is clear. It refers, in addition to the Zuid-Willemsvaart and its branch canals in Netherlands territory, to the Meuse-Scheldt Junction Canal, which branches off at Bochof on the Zuid-Willemsvaart and terminates at Antwerp, and to its branches, and also to the Turnhout Canal which runs via Saint Job to Antwerp. The statement of reasons submitted by the Prime Minister, M. Rogier, clearly alludes to this Campine system of canals when he says that "the [Belgian] State obtains, for its part, the possibility of feeding, not only the existing canals in the Campine, but also the canal, the construction of which has been decreed, from Turnhout via Saint Job to Antwerp".

It does not follow from the monopoly accorded to the intake at Maestricht that the canals situated below that town and the irrigation works in the Campine and the Netherlands may not be fed from water-courses other than the Meuse. Such a means of supply—as, for instance, by the river Demer—is perfectly compatible with the Treaty, and the only exception, in this respect, is constituted by Article VII of the Treaty, which lays down that the Belgian Government will leave undisturbed, or will restore to their natural courses, the streams and water-courses which rise in Belgium and flow towards the Netherlands territory. The fact that these canals or sectors of canals are fed by other water-courses does not deprive them of their character as canals situated below Maestricht, within the meaning of Article I.

The intakes on the Meuse which are to be replaced, in pursuance of Article I, by the feeder at Maestricht (statement of reasons by M. Rogier), are the three intakes which I have referred to above. The intake, or rather the cascade, to the left of lock 19 was, of course, to disappear with the disappearance of that lock, which was abolished by Article II of the Treaty. As regards the important intake at Liège, the Belgian Government made no difficulty on that point (Netherlands Reply, pp. 42 and 43), and once the new system had been instituted, only the quantities of water necessary to offset lockage, leakage and evaporation were diverted at Liège. The dismantling of the intake at Hocht, to the right of lock 19, was not accepted so easily by Belgium. On the contrary, the

Belgian Government made a strong stand for the maintenance of this intake in Belgian territory below Maestricht, and it is quite comprehensible that, when it at last consented to its being put out of operation, this point should have been recorded in the Treaty. But the words "in consequence of the foregoing", at the beginning of the last paragraph of Article IV, show clearly that the elimination of the Hocht intake was also the logical consequence of the fact that, under Article I, the feeder at Maestricht was henceforward to be the only installation for supplying Meuse water to all the canals situated below Maestricht and to the irrigation works in the Campine and in the Netherlands.

The new régime for the diversion of water from the Meuse necessitated certain changes in the Zuid-Willemsvaart, among others the transfer, as already mentioned, of lock 19 to a situation above the new feeder. These changes are set out in Articles II and III. Moreover, the maintenance of a constant depth in the Meuse, which had been disturbed by the considerable diversions of water at the Liége and Hocht intakes (see statement of reasons by M. Rogier)—which intakes were now to be replaced by the feeder at Maestricht—made it necessary to undertake certain works in the Meuse; these works are indicated in Article IX and its Annexes.

The replacement of the different intakes which Belgium had operated on the Meuse, by a single intake, namely, that of Maestricht, which was henceforward to be the only "tap", would have the great technical advantage, among others, of making it possible to measure, at a single place, the volume of Meuse water laid down in Article IV of the Treaty. That was an advantage to which the attention of Belgium had been drawn, *inter alia*, by the Minister of the Netherlands at Brussels in 1862 (Netherlands Memorial, p. 45).

It is clear that the substitution of a single intake, in Netherlands territory, for the different intakes on the Meuse which were in Belgian territory constitutes a very real "*de facto* advantage" (see the oral statement of M. de Ruelle, the Belgian Agent, p. 134) for the Netherlands. For "the country in which the intake is situated enjoys, in practice, better opportunities of supervision than the other country" (Belgian Rejoinder, p. 6). That advantage is illustrated by the very strong resistance offered by Belgium to the dismantling of the intake—that of Hocht to the right of the old lock 19. This opposition is constantly referred to in the despatches addressed to The Hague in October 1862 by the Netherlands Minister at Brussels (see Netherlands Memorial, pp. 43-48); and it is also apparent in the Belgian proposals of February 19th, 1863 (Netherlands Reply, pp. 42-43).

The very tangible *de facto* advantage which the Netherlands gained by the substitution of a single intake in Netherlands territory for the different intakes on the Meuse in Belgian territory—a substitution which was effected in virtue of Article I of the Treaty of 1863—has been described by the Netherlands as a right of “ascertaining (*contrôler*) at any moment that the quantities of water taken from the Meuse do not exceed the quantities specified in the Treaty, so that the complaints and discussions of the past might be avoided” (Netherlands Memorial, p. 8).

The question of control calls for the following observations.

Every international convention, unless it expressly excludes it, implies a control by the contracting parties to see whether the convention is being strictly applied. This control may lead among other things to diplomatic representations and, if necessary, to legal proceedings.

Thus, Belgium, when she thought that the Netherlands draft law submitted to the States-General on February 7th, 1921, and providing *inter alia* for the Borgharen barrage, involved consequences at variance with the Treaties of May 12th, 1863, and January 11th, 1873, addressed a note on the matter to the Netherlands Government dated April 28th, 1921 (Belgian Counter-Memorial, p. 27). Belgium was by this means exercising her right of control over the Netherlands in regard to a projected hydraulic installation on Netherlands territory, a right of control which in the present case found concrete expression in proceedings instituted against the Netherlands before the Permanent Court of International Justice.

The right of control is in principle mutual or, more strictly speaking, it is mutual wherever the convention is mutual. Thus Belgium may and, as explained to the Court, does effectively control the discharge by the Netherlands through the Maestricht feeder of the quantities of water prescribed by the 1863 Treaty. But the Netherlands cannot exercise the same control over Belgium, because the Treaty provides for no intake in Belgium.

On the other hand, each country may control the other when it finds that the latter has constructed in its territory hydraulic works whereby the canals situated below Maestricht will receive more water than the Treaty prescribed. In this way, Belgium exercised control over the Borgharen barrage and the Netherlands over the lock at Neerhaeren.

The Netherlands undoubtedly have the right of control regarding the culverts at the Neerhaeren Lock. The question whether such culverts are in accordance with a treaty which abolished

all the intakes in Belgian territory existing in 1863 and replaced them by a single intake on Netherlands territory, is certainly worth the attention of the Netherlands Government, especially as hydraulic works of this kind are not built unless it is intended that they should be used.

I consider, however, that the Netherlands argument goes too far when it claims that, while the construction by Belgium of works making it possible to feed a canal below Maestricht with water taken from the Meuse elsewhere than at that town is contrary to the 1863 Treaty, Belgium has no right to complain of the construction of such works by the Netherlands. I do not consider that the Netherlands Agent succeeded in proving that the Netherlands here possess a right not possessed by Belgium. I would add that this is the only point respecting which the Netherlands have claimed a unilateral right of control.

The fact that the Netherlands Agent stressed at length this special right of control by the Netherlands has not helped to clarify matters.

Nor did it help towards a better understanding of the case when the Belgian defence ascribed to this Netherlands right of control an extent which the Netherlands did not claim for it.

I notice in this connection that the Netherlands Government stated that, by the transfer of the intake to Netherlands territory, it was thenceforth in a position to satisfy itself (*contrôler*) at any moment that the volume of water diverted from the Meuse did not exceed the amounts prescribed in the Treaty, so that the complaints and discussions which took place in the past could be avoided (see above). It is therefore a question of check on the quantities of water, and nothing more. But the Belgian Government thinks that it involves a great deal more than that.

Thus Belgium deduces from the indisputable fact that the negotiations concerning the diversion of water from the Meuse had been combined with those concerning the redemption of the Scheldt tolls, the following argument, which appears on page 6 of the Belgian Counter-Memorial: "The Netherlands possessed, in virtue of the Scheldt tolls, control of navigation on the maritime part of the Scheldt. It was an important prerogative; they were only willing to relinquish it—such is the argument—in return for the control of navigation on the canals which are now under discussion." That is not the correct way of stating the question. The Netherlands certainly do not claim that Article I of the Treaty of 1863 invested them with the control of navigation on the canals situated below Maestricht. What the Netherlands say that

they acquired in virtue of Article I is simply the control over the volume of water. Furthermore, if the Scheldt tolls really conferred a right of control over navigation in the maritime part of the Scheldt, as the Belgian Government seems to believe, the navigation dues levied by Belgium on the Meuse (in the case of the Netherlands these dues were abolished in 1851) would constitute a Belgian right of control over navigation on the Meuse. Would that really be in line with the Belgian Government's ideas?

The Netherlands Government stated in its Application (p. 8) that "The equilibrium established by the Treaty of 1863 between the interests affected has been disturbed by the undertaking of these works, by the uses to which they are being put and by the uses for which they are intended." It is clear from the manner in which this statement is developed under (a), (b) and (c), that what was complained of was a disturbance of the equilibrium in regard to the distribution of the Meuse water as regulated once and for all in 1863. But the Belgian Government interprets this statement in the Netherlands Application, although it is quite clear, as if it referred to the economic equilibrium between Antwerp and Rotterdam (see Belgian Counter-Memorial, p. 7).

I might quote other extracts from the Belgian documents and oral statements, but these two passages are sufficient to show that Belgium regarded the control over the volume of water as a control over navigation and traffic such as the Netherlands have not claimed.

Before dealing with the Netherlands submission I *a*, I would repeat that this is the only submission which the Netherlands base upon this right of control and that, in particular, the Netherlands defence against the Belgian counter-claim is not founded upon this special right of control.

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In this submission I *a* the Netherlands ask the Court to declare that the construction by Belgium of works enabling a canal situated below Maestricht to be supplied with water taken from the Meuse elsewhere than at that town is contrary to the Treaty of May 12th, 1863.

What is envisaged in this submission are works which, though they do not at present feed a canal situated below Maestricht, nevertheless enable this supply to be effected. In order to confine our consideration to the kind of hydraulic works which come into question in the present case, we should note that what is envisaged is not longitudinal culverts in locks which it is admitted will be utilized in addition to locking operations

(as is the case with the five locks of the Albert Canal between the first lock near Herstal (Liège) and the last lock at Wyneghem). Nor are we here envisaging locks which, as the Parties are also agreed, will be utilized and consequently will discharge lock-water.

We are solely concerned with works which might supply feed water if they were utilized, as, for example, the longitudinal culverts in the lock at Neerhaeren.

What attitude did Belgium adopt towards the Netherlands submission I *a* ?

I should have understood it if Belgium, on the basis of her interpretation of the 1863 Treaty, had said that, since the Treaty does not apply above Maestricht, she was entitled to discharge Meuse water through the Neerhaeren culverts into the canals situated below Maestricht, and that she would make such use of that right as she thought necessary.

That however was not her attitude. The culverts having been constructed, the Counter-Memorial on pages 10 and 11 denies their existence, and when the Netherlands had demonstrated that the Neerhaeren Lock was indeed provided with culverts, Belgium fell back on the assertion that the electric installations of the lock would only allow these culverts to be used for filling the lock chamber (Oral Pleadings, p. 111). However, when the Netherlands Agent stated that this electrical installation could be altered in five minutes (Oral Pleadings, p. 171), that statement was not contradicted.

The question arises whether such an attitude stops short of the line dividing what States may do from what they may not do if they wish to remain within the law. I cannot answer this question in the affirmative, and the submission under I *a* appears therefore to be justified.

I would add that the Belgian Counsels ended by admitting that in certain eventualities the culverts at the Neerhaeren Lock would be used for some other purpose than lockage, which indeed is not surprising, since culverts are not built except to be used. It was rather a question of economic or military necessity which would compel Belgium to keep intact the water supply of the Zuid-Willemsvaart and of the inundation zones which might be created north of Neerhaeren (Oral Pleadings, pp. 91 and 210-211).

In its submission under I *b*, the Netherlands Government asks the Court to declare that the feeding of the Belgian section of the Zuid-Willemsvaart, of the Campine Canal, of the Hasselt branch of that canal, and of the branch leading to Beverloo Camp, as also of the Turnhout Canal, through the

Neerhaeren Lock, with water taken from the Meuse elsewhere than at Maestricht, is contrary to the 1863 Treaty.

After what has already been said in the present note, not much need be added.

It is common ground that the Treaty of 1863 defines and limits the quantity of Meuse water to be used for feeding the Belgian system of Campine canals, and it is also common ground that the feeder at Maestricht is to be the only feeder. The cubic metre per second which is added by the lockage at Neerhaeren is therefore contrary to the Treaty of 1863.

As already mentioned above, there is another reason why the discharge of lock-water, which goes to feed the Zuid-Willemsvaart, is contrary to the Treaty of 1863. This discharge restricts the right reserved to the Netherlands by paragraph 2 of Article V to increase the volume of water drawn from the Meuse at Maestricht. The lockage at Neerhaeren diminishes the right to increase the two cubic metres per second allowed to the Netherlands under paragraph 1 of Article V, by about one cubic metre per second.

In its submissions I *c* and I *d*, the Netherlands Government asks the Court to declare that Belgium's project of feeding a section of the Hasselt Canal with water taken from the Meuse elsewhere than at Maestricht is contrary to the Treaty of 1863, and that Belgium's project of feeding the section of the canal joining the Zuid-Willemsvaart and the Scheldt between Herenthals (Viersel) and Antwerp with water taken from the Meuse elsewhere than at Maestricht, is also contrary to the said Treaty.

These two submissions can be examined in conjunction, as they are very similar.

The Netherlands do not allege that Belgium would not be entitled to enlarge the canals situated below Maestricht or to change their names. In point of fact, Belgium has considerably enlarged, not only the Zuid-Willemsvaart, but also parts of the system of the Belgian Campine canals, in particular the Meuse-Scheldt Junction Canal and the Hasselt branch. But, in enlarging these canals, Belgium is not entitled to exempt them from the rules governing their supply with Meuse water, which are laid down in the Treaty of 1863. It is common ground that the Treaty of 1863 lays down eight cubic metres per second as the volume to be taken through the feeder at Maestricht for this purpose. It is also agreed that the sector of the canal linking the Zuid-Willemsvaart with the Scheldt between Herenthals (Viersel) and Antwerp will also receive Meuse water through the Albert Canal, which, as far as lock No. I, stands at a level of 60 and then falls more than 50 metres by locks I to V before reaching Herenthals, and all these locks are provided with discharging culverts which, it is admitted,

will be utilized for feeding the different reaches of the canal. It follows from the above that the feeding of this sector in the manner projected will be contrary to the Treaty of 1863.

The same applies to the section of the Hasselt Canal which is now being enlarged and will also form part of the Albert Canal. The Netherlands do not contest Belgium's right to feed this section of the Hasselt Canal with water from the Demer. The question of fact on which the two Governments differ is whether this section, in addition to the water which it receives from the Demer, is also fed by Meuse water coming from the feeder at Maestricht and conveyed beyond Quaedmechelen by the northern section of the Hasselt Canal. It appears that this question of fact can be left on one side. But it seems clear to me that this is a case of a canal situated below Maestricht, one of the already existing canals in the Campine mentioned in the statement of reasons drawn up by the Prime Minister, M. Rogier, and that in consequence this canal may only receive Meuse water derived through the feeder at Maestricht. It is also common ground that this enlarged portion of the canals situated below Maestricht will henceforward receive Meuse water derived from Monsin; hence the projected feeding of this section with water diverted from the Meuse elsewhere than at Maestricht will be contrary to the Treaty of 1863.

The Belgian Agent said on page 14 of the Counter-Memorial that, if the Albert Canal from Pulle onwards, instead of being linked with the canal uniting the Meuse and the Scheldt, had been placed alongside it, separated from it by a dyke which prevented the waters from mixing, the charge made by the Netherlands would never have been brought. That is true, but it is true also that this hypothetical contingency did not arise and that, once the Albert Canal were completed, the canals situated below Maestricht, apart from the Neerhaeren Lock, will be fed with Meuse water not coming from the Maestricht feeder. I would add that the Netherlands Agent, replying to the above-mentioned remark of his Belgian colleague, said that *if* Belgium had constructed other works than she has, the Netherlands complaints would certainly have taken another form and been furnished with a very different legal basis (Netherlands Reply, p. 24).

* * *

With regard to the counter-claim, I need only make the following observations:

It is clear from pages 26, 27 and 29 of the Netherlands Reply that, as regards both the Borgharen barrage and the Bosscheveld Lock and Juliana Canal, the Netherlands defence rests upon Article V, paragraph 2, of the 1863 Treaty.

And the oral statement of the Netherlands Agent (Oral Pleadings, pp. 52-69) has the same foundation.

The Netherlands defence begins on page 52 with the following sentence: "The points at issue in the case submitted to the Court through the Belgian counter-claim are three in number; but they have a common basis, or rather our defence is based upon a single point of law. I want first to discuss this common point of law: it is the question of the distribution of water and of Article V, paragraph 2, of the Treaty." Pages 52-62 are almost entirely devoted to the interpretation of Article V, paragraph 2, and pages 62-69 then apply this interpretation to the three hydraulic installations impugned in the counter-claim. On pages 62 and 67 the Netherlands Agent again says that his defence against the counter-claim rests upon Article V, paragraph 2, of the Treaty of 1863.

One would search the Netherlands defence against the counter-claim in vain to find any allusion to the right of control, which, as already mentioned above, serves as the basis of the Netherlands submission I *a* only.

The Netherlands interpretation of paragraph 2 of Article V of the 1863 Treaty may, I think, be summarized as follows.

This provision allows, or rather it presupposes, that the Netherlands are free to withdraw water from the Meuse below Maestricht. Any interpretation which restricted this freedom would be vexatious and therefore inadmissible. Article V, paragraph 2, deals only with the case in which the Netherlands should decide to divert quantities of water from the Meuse into the Maestricht feeder in addition to the quantity laid down in Article IV and Article V, paragraph 1: only in this case is the additional water to pass into the Netherlands through lock No. 17 at Loozen.

The mere right to divert additional water into the Zuid-Willemsvaart allows the Netherlands to put the Meuse constantly out of use for an average of more than a hundred days in the year. This implies that Belgium, by accepting the Treaty of 1863, left the navigability of the frontier section of the Meuse to the discretion of the Netherlands, Belgium, so to speak, abandoning the interests of navigation over that part of the Meuse to the care of the Netherlands.

The freedom enjoyed by the Netherlands of taking water from the Meuse below Maestricht, a right which Belgium admitted when she disclaimed interest in navigation over the frontier section of the Meuse through her acceptance of Article V, paragraph 2, allows the Netherlands, on the one hand, to feed the Juliana Canal with Meuse water and, on the other, to make a present to Belgium of certain quantities of water from the Meuse,

which they do through the operation *both* of the Borgharen barrage *and* of the Bosscheveld Lock.

It follows from the above that the feeding of the Zuid-Willemsvaart as the result of the Borgharen barrage and the functioning of the Bosscheveld Lock, and also the feeding of the Juliana Canal with water from the Meuse, are, according to the Netherlands case, permissible under Article V, paragraph 2, of the Treaty of 1863.

I am of opinion that Article V, paragraph 2, does not possess the very wide scope given to it by the Netherlands case, and that some of the consequences which that argument seeks to deduce therefrom are not justified.

The Treaty of 1863 confines itself to regulating the supply with Meuse water of the canals situated below Maestricht and of the irrigation channels of the Campine and the Netherlands (Art. I). The waterways in question are therefore the Zuid-Willemsvaart and the canals and irrigation channels branching from it. Though, under Article V, paragraph 2, the Netherlands are entitled to increase the volume of water assigned to them by the first paragraph of Article V, that additional water must be necessary for canals situated below Maestricht or for irrigation in the Netherlands. The water must also pass through the Maestricht feeder, the exclusive use of which is incumbent both upon Belgium and upon the Netherlands, although, as mentioned above, its practical value below Maestricht is limited to the immediate neighbourhood of that town; the very general wording of Article I is clear on this point. The last phrase in paragraph 2 of Article V imposes upon Belgium the duty of delivering to the Netherlands the additional water taken at Maestricht in virtue of the first phrase in that paragraph.

Applying my interpretation to the points at issue in the counter-claim, I reach the following result.

The feeding of the Zuid-Willemsvaart with water from the working of the Bosscheveld Lock remains within the limits fixed by paragraph 2 of Article V, so far as concerns the speed of the current in the Zuid-Willemsvaart. There is however a departure from the Treaty in the fact that the additional water, lawful in itself, if needed for the Netherlands canals below Maestricht or for Netherlands irrigation, does not pass through the treaty feeder. The departure is certainly of smaller extent than between the Treaty and the use of the lock-water at Neerhaeren, which, unlawful in itself, diminishes the right possessed by the Netherlands under paragraph 2 of Article V, while the measurement of the volume of water withdrawn from the Meuse is rendered difficult since it cannot be effected by the same administration.

As we know, the lock-water discharged by the Bosscheveld Lock is not the subject of a submission in the Belgian counter-claim.

The additional water which at certain seasons of the year passes through the Maestricht feeder as the result of the raising of the level of the Meuse—itself the consequence of the Borgharen barrage—has nothing to do with Article V, paragraph 2, of the Treaty.

This water is part of the quantities laid down in Article IV and secures for the Zuid-Willemsvaart a permanent flow of ten cubic metres per second, which the Belgian Minister for Foreign Affairs, in his note of January 22nd, 1912 (Netherlands Reply, p. 72), thought indispensable to feed the canals from Liège to Antwerp. I do not see why this state of affairs should have made it impossible to apply the Treaty regularly, as Belgium asserts it has, all the less so because, even in 1863, the Meuse régime was characterized by a number of barrages with locks constructed both by France and by Belgium in the absence of any international agreement. Had it been intended to deny to the Netherlands a right which the other riparian States of the Meuse claimed to possess, the Treaty of 1863 would have made it clear. For my part, I hold that the Borgharen barrage was not constructed contrary to the terms of this Treaty.

As stated above, the Treaty of 1863 confines itself to regulating the supply of the Zuid-Willemsvaart and of a number of navigation and irrigation channels, all of which are situated on the left bank of the river. The Juliana Canal, on the right bank of the Meuse, below the Maestricht feeder, the working of which it cannot affect, accordingly lies outside the sphere of the Treaty of 1863. That Treaty cannot therefore either allow the Juliana Canal to be fed with Meuse water, as maintained by the Netherlands, or forbid it so to be fed, as maintained by Belgium. The question of the feeding of the Juliana Canal with water from the Meuse is thus not touched upon by the Treaty of 1863.

Lastly, the Netherlands seek to deduce from paragraph 2 of Article V that Belgium by that Article disclaimed all interest in navigation over the frontier section of the Meuse, this navigation being left to the discretion of the Netherlands. This deduction is not I think justified.

It is true that, when the flow of the river is at its minimum, the joint section of the Meuse may almost run dry for the reason that the Maestricht feeder must function at all times. But if there were no intakes on the Meuse, the river, even if it were not completely dry, would for considerable periods have so little water that navigation would then too be out of

the question. Nevertheless, Belgian interest in that navigation would remain the same. That interest is the direct result of the fact that Belgium is a riparian State, and it is not limited to the joint section of the Meuse only, but extends to the whole river.

The fact that Belgium is a riparian State furnishes a much stronger ground for Belgium's interest in navigation over the whole Meuse than does Article IX of the Treaty, quite apart from the fact that this Article is limited to the part of the river between Maestricht and Venlo. Under Article IX, Belgium undertook to pay two-thirds of the cost of regularizing the Meuse between Maestricht and Venlo, since this work was necessary to counteract the mischievous consequences to river navigation of withdrawing large quantities of water for Belgium. It is compensation which Belgium would have had to pay even if she had really disclaimed all interest in Meuse navigation below Maestricht. The Counter-Memorial describes the situation very well when it says on page 5 that Belgium to a certain extent purchased the water taken at Maestricht for the canals of the Campine. Article IX of the 1863 Treaty does not prove the interest of Belgium in navigation on the joint section of the Meuse. That interest, whether great or small, exists by the mere fact that Belgium is a riparian State.

(Signed) V. EYSINGA.